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Case Number: 24TRCV00507 Hearing Date: June 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ANGELA CONNAUGHTON

, et al.;

Plaintiffs,

vs.

GLEN SUGAHARA

, et al.;

Defendants.

Case

No.:

24TRCV00507

Hearing

Date:

June
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANTS

GLEN SUGAHARA AND LEILANI SUGAHARA'S MOTION FOR ORDER DIRECTING THE CUSTODIAN
OF RECORDS OF L.A. HEALTH CARE PLAN TO COMPLY WITH DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS

(2)

DEFENDANTS

GLEN SUGAHARA AND LEILANI SUGAHARA'S REQUEST FOR SANCTIONS

MOVING PARTY: Defendants, Glen Sugahara and
Leilani Sugahara

RESPONDING

PARTY: No opposition.

(1)

Defendants

Glen Sugahara and Leilani Sugahara's Motion for Order Directing the Custodian
of Records of L.A. Health Care Plan to Comply with Deposition Subpoena for
Production of Records is GRANTED IN PART pursuant to Code of Civil Procedure
section 1987.1.

(2)

Plaintiffs

Glen Sugahara and Leilani Sugahara's Request for Sanctions is GRANTED pursuant
to Code of Civil Procedure sections 1992, 2023.010, 2023.030, and 2020.240.

The Court considers the moving

papers filed on April 17, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On February 13, 2024, plaintiff
Angela Connaughton ("Plaintiff") filed the Complaint against defendants Glen
Sugahara, Leilani Sugahara, Joua Marsh Investments, LLC, and DOES 1 through
25. The Complaint includes two causes of
action for (1) General Negligence and (2) Premises Liability.

On August 14, 2025, counsel
for Glen Sugahara and Leilani Sugahara (collectively, "Defendants") issued a
deposition subpoena to the Custodian of Records at L.A. Health Care Plan,
requesting the production of business records.
(Declaration of El Mahdi Young ("Young Decl."), ¶ 7.) The deposition subpoena seeks the following:
"[c]omplete records from 07/12/2012 to the present, including but not limited
to any records/documents that may be stored digitally and/or electronically:
documents, itemized statements of the billing charges, medical reports, doctor's
entries, insurance records, claim records, nurse's notes, progress reports,
radiology reports, MRI reports, lab reports, physical therapy records, case
history, emergency records, diagnosis, prognosis, condition, admit and
discharge records." (Young Decl., ¶ 7,
Exh. C.) L.A. Health Care Plan was
required to produce these records by September 11, 2024. (Young Decl., ¶ 7.)

On August 26, 2024, Defendants served the deposition subpoena on L.A.
Health Care Plan by electronically transmitting the documents to the email
address . (Young Decl., ¶ 7.) Defendants chose this method of service in
lieu of personal service, as L.A.
Health Care Plan's "recorded caller message for the Custodian of Records for
subpoenas of business records ... instructed [parties] to electronically serve
subpoenas to ." (Young
Decl., ¶ 7.)

Neither Plaintiff nor L.A.

Health Care Plan raised any objections to the subpoena. (Young Decl., ¶ 8.) Additionally, L.A. Health Care Plan failed to
comply with the subpoena by the September deadline. (Young Decl., ¶ 20.)

For a duration exceeding one year, Defendants' counsel and Ontellus, the copy service provider hired by Defendants' office to obtain the subpoenaed records, made several unsuccessful attempts to secure the requested documents. (Young Decl., ¶¶ 9-17, Exhs. D-E.)

On April 7, 2026, Felix Huerta, a paralegal from L.A. Health Care Plan's General Legal Services, informed Defendants' counsel that the subpoena request was not recorded in their logs; however, they had received the proof of service. (Young Decl., ¶ 18, Exh. F.) On the same day, Defendants' counsel responded by stating that the subpoena was served at the email address and provided a draft version of a motion to compel that would be filed should L.A. Health Care Plan fail to comply. (Young Decl., ¶ 18, Exh. F.)

On April 13, 2026, Defendants' counsel followed up with a request, indicating their preference to avoid filing a motion to compel. (Young Decl., ¶ 19, Exh. F.) However, they did not receive a response. (Young Decl., ¶ 19, Exh. F.)

Procedural Background

On April 17, 2026, Defendants filed the motion. To date, no opposition brief has been filed.

On April 21, 2026, Defendants filed an affidavit of due diligence, which indicated that their registered process server made an attempt to personally serve the L.A. Health Care Plan with the motion on April 20, 2026. (Affidavit, ¶ 2.) However, the server was advised to serve the document via email instead. (Affidavit, ¶ 2.)

LEGAL STANDARD

Under California law, "discovery from a nonparty may be

obtained only by 'deposition subpoena.'"

(Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 130 (Unzipped), citing Code Civ. Proc., § 2020.010, subd. (b).)

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition for production of business records.

(Code of Civ. Proc., § 2020.010.) A deposition subpoena may command: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. (Code of Civ. Proc., § 2020.020.)

"A provider of health care, a health care service plan, or a contractor shall disclose medical information if the disclosure is compelled by any of the following: ...

¶ (3) A

party to a proceeding before a court or administrative agency pursuant to a subpoena, subpoena duces tecum, notice to appear served pursuant to Section 1987 of the Code of Civil Procedure, or any provision authorizing discovery in a proceeding before a court or administrative agency." (Civ. Code, § 56.10, subd. (b)(3).)

Service of a deposition subpoena shall be effected a sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition. (Code of Civ. Proc., § 2020.220, subd. (a).) Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies. (Code of Civ. Proc., § 2020.220, subd. (c).)

When a nonparty is served with a deposition subpoena but fails to attend the deposition, refuses to be sworn as a witness, or declines to provide the requested records, the party that served the subpoena may move for an order directing compliance with the subpoena and imposing other terms or conditions as the judge considers appropriate. (Code Civ. Proc., § 1987.1, subd. (a).) Notably, Code of Civil Procedure section 1987.1 does not impose a meet-and-confer requirement.

However, “[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.020, subd. (a).) Moreover, “[t]he court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines either of the following:

¶ (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. ¶ (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.”

(Code Civ. Proc., § 2019.030, subd. (a).)

“Except as specified in subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

“Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery.”

(Code Civ. Proc., § 2023.010, subd. (d).)

"A deponent who disobeys a deposition subpoena in any manner described in subdivision (c) of Section 2020.220 may be punished for contempt under Chapter 7 (commencing with Section 2023.010) without the necessity of a prior order of court directing compliance by the witness. The deponent is also subject to the forfeiture and the payment of damages set forth in Section 1992." (Code Civ. Proc., § 2020.240.) "A person failing to appear pursuant to a subpoena or a court order also forfeits to the party aggrieved the sum of five hundred dollars (\$500), and all damages that he or she may sustain by the failure of the person to appear pursuant to the subpoena or court order, which forfeiture and damages may be recovered in a civil action." (Code Civ. Proc., § 1992.)

DISCUSSION

Defendants move to compel the Custodian of Records at L.A. Health Care Plan to produce Plaintiff's medical and billing records in compliance with a deposition subpoena for the production of business records that was served on August 26, 2024. (Motion, p. 2:1-5; Young Decl., ¶ 7, Exh. C.) The deposition subpoena seeks the following: "[c]omplete records from 07/12/2012 to the present, including but not limited to any records/documents that may be stored digitally and/or electronically: documents, itemized statements of the billing charges, medical reports, doctor's entries, insurance records, claim records, nurse's notes, progress reports, radiology reports, MRI reports, lab reports, physical therapy records, case history, emergency records, diagnosis, prognosis, condition, admit and discharge records." (Young Decl., ¶ 7, Exh. C.)

Defendants issued this deposition subpoena after receiving discovery responses from Plaintiff indicating that she "sustained various injuries as a result of the incident, including 8th and 9th left rib fractures, unspecified intracranial injury, headache, cervicgia, post traumatic headache, pain right shoulder and cervical disc disorder" due to a slip and fall incident that occurred on July 12, 2022. (Young Decl., ¶¶ 2, 4, Exh. A.) Additionally, Plaintiff's supplemental responses revealed that her managed health care provider at the time of the incident was L.A. Care Health Plan. (Young Decl., ¶ 5, Exh. B.)

Defendants' counsel, El Mahdi

Young, indicates that on August 26, 2024, Defendants served the deposition subpoena on L.A. Health Care Plan by electronically transmitting the documents to the email address .

(Young Decl., ¶ 7.) Defendants

chose this method of service in lieu of personal service, as L.A. Health Care Plan's "recorded caller message for the Custodian of Records for subpoenas of business records ... instructed [parties] to electronically serve subpoenas to ." (Young Decl., ¶ 7.)

The Court finds that, in the

absence of any contradictory evidence, the proof of service executed on August

26, 2024, effectively establishes valid service of the deposition subpoena. (Young Decl., ¶ 7, Exh. C.) While the Court recognizes that Defendants

did not personally serve the deposition subpoena in accordance with Code of Civil Procedure section 2020.220, it appears that L.A. Health Care Plan has waived this requirement by permitting electronic service, as indicated by their recorded message. (Young Decl., ¶ 7.)

Moreover, the Court finds that

Young's declaration substantiates L.A. Health Care Plan's failure to comply with the deposition subpoena by the September deadline. (Young Decl., ¶ 20.) Consequently, the Court concludes that Defendants are entitled to an order compelling L.A. Health Care Plan's Custodian of Records to produce the subpoenaed records pursuant to Code of Civil Procedure Section 1987.1, subdivision (a). However, the Court observes that Defendants' requests are overly broad. Plaintiff's claimed injuries are confined to her head, neck, back, spine, ribs, and right shoulder; thus, the Court will limit the records produced to those specifically related to these body parts. (Young Decl., ¶ 4, Exh. A.)

Accordingly, the Defendants'

motion to compel compliance is GRANTED IN PART.

Request for Sanctions

Defendants are requesting sanctions in the amount of \$900.00 to cover the attorneys' fees related to the filing of this motion, as well as \$500.00 in forfeitures due to L.A. Health Care Plan's failure to appear and produce the requested subpoenaed records on September 11, 2024. (Motion, pp. 6:14-7:6.) This request is made under the following legal provisions: Code of Civil Procedure sections 2023.010, 2023.030, 1987.2, 1992,

and 2020.240. (Motion, p. 6:17-27.)

This request

is supported by a declaration from Defendants' counsel, El Mahdi Young. In this declaration, Young indicates that a legal assistant spent 2.0 hours drafting the motion and reserving the hearing, charging a rate of \$95.00 per hour. (Young Decl., ¶ 22.) Young further states that attorneys from their office expended 3.0 hours in efforts to meet and confer, reviewing the moving papers, and attending the hearing, billed at a rate of \$175.00 per hour. (Young Decl., ¶ 22.) Additionally, Defendants incurred \$60.00 in filing fees and \$125.00 to serve L.A. Health Care Plan. (Young Decl., ¶ 22.)

Here, sanctions are warranted given the failure of L.A. Health Care Plan's Custodian of Records to produce the requested documents as mandated by the deposition subpoena. Moreover, the Court finds the requested amounts to be reasonable. As such, the Defendants' request for sanctions in the total amount of \$1,400.00 is GRANTED.

ORDERS

1) Defendants

Glen Sugahara and Leilani Sugahara's Motion for Order Directing the Custodian of Records of L.A. Health Care Plan to Comply with Deposition Subpoena for Production of Records is GRANTED IN PART.

2) The

Custodian of Records of L.A. Health Care Plan shall produce complete records related to Plaintiff Angela Connaughton's head, neck, back, spine, ribs, and right shoulder, covering the period from July 12, 2022, to the present. These records must be produced by July 13, 2026.

3) Defendants

Glen Sugahara and Leilani Sugahara's Request for Sanctions is GRANTED.

4) Non-Party

L.A. Health Care Plan shall pay Defendants' counsel \$1,400.00 by July 13, 2026.

5) Defendants

are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: June 29, 2026

Tamara
Hall

Judge
of the Superior Court